

IRREVOCABLE GENERAL POWER OF ATTORNEY

[IN PURSUANCE OF THE AGREEMENT FOR DEVELOPMENT DATED 15/12/2022 DULY REGISTERED IN THE OFFICE OF THE SUB REGISTRAR, NAGPUR NO.4 ON 15/12/2022 IN BOOK NO.1 AT SERIAL NO. 10844/2022. THE REQUISITE STAMP DUTY OF RS.5,48,750/- & REGISTRATION FEES OF RS.30,000/- IS ACCORDINGLY PAID ON THE SAID AGREEMENT FOR DEVELOPMENT]

KNOWN ALL MEN BY THIS PRESENTS THAT,

WE, 1) **SHRI LAXMAN DEVIDAS PADOLE**, Aged about 57 years, Occupation - Service, (PAN NO. AGFPP7095M) (ADHAR NO. 5802 2348 2242) R/o. 13 Ganesh Colony, Paratap Nagar, RINGROAD, Nagpur, Ranapratap Nagar, Nagpur, Maharashtra-440022,

2) **SHRI DIGAMBAR DEVIDAS PADOLE**, Aged about 56 years, Occupation - Service. (PAN- AEOPP2866B) (ADHAR NO. 8672 0732 3103) Resident of Flat No. 13 Ganesh Colony, Paratap Nagar, RINGROAD, Nagpur, Ranapratap Nagar, Nagpur, Maharashtra-440022, hereinafter for sake of brevity referred to as the "said Attorney" as my true and Lawful Attorney in my names and on my behalf and we hereby authorize and empower them to do all or any of the following lawful acts, deeds and things.

SEND GREETINGS:

We are Owners of ALL THAT piece and parcel of land bearing Amalgamated PLOT NO. 4-5, total admeasuring 360.00 Sq. Mtrs. (3875.04 Sq. Fts.), in the layout of Kh. No. 165 of Mouza- jaitala, on pattern of Talegaon - Dabhade Scheme Under Section -20 (1)a of ULC & R Act 76, being a portion of the entire land bearing Kh. No. 165, P.S.K. 44 of Mouza Jaitala, situated at Jaitala, Nagpur, bearing CORPORATION HOUSE NO. 1046/A/A/4 & 1046 A/A/5, CITY SURVEY NO. 653, SHEET NO. 37(571), within the limits of Nagpur Municipal Corporation and Nagpur Improvement Trust, Nagpur, in Tahsil and District Nagpur.

AND

WHEREAS, we the Executants have executed Agreement of Development Dated 01/12/2022 in favor of **M/S. AGASTYA BUILDERS & DEVELOPER. (PAN-AAVFA8532C)**. A Partnership Firm, having it's office at Matey Chowk, Nagpur-440022 Acting through it's Authorized Partner **1) SHRI BADAL S/O MAHENDRAKUMAR MATEY**. Aged about 49 Years. Occupation - Business, (PAN AIGPM9457M) (ADHAR NO. 6476 8838 9888) (MB NO. 98226 42423) Resident of Matey Chowk, Gopal Nagar, Nagpur-440022 Tahsil & District NAGPUR have paid entire Stamp Duty of Rs. -----/- and Registration Fee of Rs. 30,000/- Under Article 5 (g-a) of The Bombay Stamp Act, 1958, on the said Agreement of Development and therefore as per the Proviso of Article 48 of the Bombay Stamp Act, 1958, the Developer is exempted from paying Stamp Duty and

Registration Fee on this Irrevocable Power of Attorney. Therefore, Stamp Duty of Rs.500/- is paid herewith.

AND

WHEREAS, the said Developers intends to develop the said property by constructing building consisting of residential apartments. It is agreed that the, the Executants being desirous to retain TWO 3-BHK APARTMENT ON 3RD FLOOR HAVING AREA ABOUT SQUARE MTRS. to **SHRI LAXMAN DEVIDAS PADOLE**, & TWO 3 BHK APARTMENT ON THE 1ST FLOOR HAVING AREA ADMEASURING ABOUT ----- SQUARE MTRS. TO **SHRI DIGAMBAR DEVIDAS PADOLE** in the concerned scheme. The remaining all apartments shall be retained and shall be at the disposal of the Developer as per their discrefion. Hence to enable the Developer to develop the said property, at the request of the Developer and in furtherance of the aforesaid agreement, we the Executants herein have executing this power of attorney.

AND

WHEREAS, it be necessary for us to be personally present for execution of agreements with prospective purchasers, execution of sale deeds and signing of different documents to be submitted to different authorities and passing of receipts of consideration to be received from the prospective apartment purchasers and also to execute Deed of Apartment and to Register them and to do all other necessary acts, deeds and things for Apartments and also approaching different authorities for sanctioning of plans, construction of the building etc, hence we decided to nominate, constitute, empower, authorize M/S. AGASTYA BUILDERS & DEVELOPER, (PAN- AAVFA8532C), A Partnership Firm, Acting Through it's Authorized Partner- **SHRI BADAL S/O MAHENDRAKUMAR MATEY**. as my lawful attorney, to do, act and perform or to cause to be done or acted or executed all or any of the acts, deeds or things jointly mentioned hereunder in our names and on our behalf in respect of the said property mentioned in the schedule of property hereunder.

- 1) **THAT**, enter into an Agreement(s) to Sell of the apartments to be constructed on the said property with willing buyer(s) and to sign and execute such Agreement(s) to Sell and to get the same duly registered in accordance with the law in force and to do all acts, deeds and things in order to do the same and admit execution thereof.
- 2) **THAT**, to enter into & shall execute an various Agreements to Sell, Sale Deeds. Deed of Declaration, various Apartment Deeds. Correction Deeds. Mortgage Deed. Gift Deed. Additional Mortgage Deed, Equitable Mortgage, Relinquishment Deed Supplementary Agreement, Deed of Apartment and all other kinds of documents on their behalf and also to carry out and observe all the obligations on their part herein contained or otherwise required by law and to do all things necessary to complete the transfer of the property hereby agreed to be developed/sold and this power will not be withdrawn or revoked by the Executants until the transactions envisaged herein is completed in all respects.

- 3) **THAT,** to execute deed of apartment/s in order to transfer the said property or portion thereof forming part of apartments, in favour of the respective apartment purchasers and to present the same before the registering authority for registration and to do all acts, deeds and things in order to register the same.
- 4) **THAT,** to prefer applications etc. to enter the name of the Society/Association of Apartments/tenement purchasers in the Property Register Card, as the owner of the said property, and to do all acts, deeds and things thereof.
- 5) **THAT,** receive the Earnest Money or Advance Sale Price from such Buyer(s) and to pass valid receipt and discharge for the same...
- 6) **THAT,** sign Plans/Revised Plans of the Building proposed to be constructed on the said property and also to sign/execute indemnity bonds, various forms and applications and also to swear an Affidavit(s) required to be submitted to the Nagpur Improvement Trust/ Nagpur Municipal Corporation for seeking sanction to such Plans.
- 7) **THAT,** deposit necessary sums in the office of the Nagpur Improvement Trust/ Nagpur Municipal Corporation, MSEDCL, Water Works Department in my name and to apply for refund thereof and to receive back such money as may be refunded to us by the Nagpur Improvement Trust/ Nagpur Municipal Corporation and to pass a valid receipt and discharge for the same.
- 8) **THAT,** the said attorney is/are empowered to obtain permission or approval from all Government authorities like Nagpur Improvement Trust, Nagpur Municipal Corporation, Maharashtra State Electricity Distribution Company Limited & other authorities as may be required for Development & construction of the building, receiving occupation certificate & for that purpose to sign, execute, verify, file applications, affidavits, undertakings, bonds, letters, Memorandum etc as may be required in relation to the said property.
- 9) **THAT,** to apply for Water and Electricity connection etc. and to pay/deposit necessary sums in the office of the concerned authorities.
- 10) **THAT,** sign various applications/forms regarding commencement of work, progress of work and completion of work etc. and to submit the same in the office of the Nagpur Improvement Trust/ Nagpur Municipal Corporation.
- 11) **THAT,** sign and execute Sale Deed(s), Gift Deed, Agreement To sell, Mortgage Deed, Correction Deed, Relinquishment Deed, Deed of Apartment, of the Apartments to be constructed on the said property or to sign and execute various Sale Deeds each relating to the Undivided proportionate variable shares and interest in the aforesaid property in favour of the respective individual buyers and receive the balance sale price from such buyer(s) and to get such Sale Deed(s) duly registered in accordance with the law in force.
- 12) **THAT,** to sign and execute a Deed of Declaration Under Section 2 of the Maharashtra Apartment & Ownership Act, 1970 and also to sign/execute various

Apartment Deeds in favor of the respective individual Apartment Owners and to get duly registered with the Sub-Registrar in accordance with the law in force.

- 13) **THAT**, deliver the actual physical possession of the Apartments to be constructed on the said property to the respective individual buyer's) on Registration of the Sale Deed(s).
- 14) **THAT**, support all applications for mutation of names on the said property and to do all necessary things to procure the mutation thereof in favour of such individual buyers in all relevant records
- 15) **THAT**, sign and verify applications, statements, declarations and Affidavits etc. for and on our behalf.
- 16) **THAT**, deposit money in the Court, Government and Semi Government Departments and offices as and may required,
- 17) **THAT**, obtain/purchase the Transferable Development Rights for Construction of Multistoried building on the said Plot of land and to sign and execute all the required deeds and documents in that regard. If the Transferable Development Rights so purchased could not be utilized in the said construction, then the Attorney shall have full right to sell/transfer such Transferable Development Rights.
- 18) **THAT**, obtain refund or money so deposited in any court, Government and Semi Government Departments and Offices and to pass a valid receipt and discharge for the same.
- 19) **THAT**, apply and obtain loan from any financial Institutions, Banks, for the construction of the building and to execute and register deeds of mortgage, Agreement and other documents required for the same and to do and execute or cause to be done and execute all acts, deeds and things necessary for the same, subject to the terms as agreed in the Agreement for Development. However, all such loans and securities offered against such loans shall be restricted to property mentioned in schedule hereunder and in any case the recovery of any outstanding deeds arising out of loans shall not affect the rights, property as agreed to be given to the Executants including the property mentioned in the agreement for development and other properties movable/immovable of the Executants.
- 20) **THAT**, do all things necessary to complete the aforesaid transaction of sale of apartments constructed on the said property and to observe and perform all the obligations on our part in accordance with the Agreement(s) to be made by us with any willing buyer/buyers.
- 21) **THAT**, appoint Architect, Engineer, RCC consultants and/or Supervisor for carrying on and completing the proposed works and to pay their necessary fees/charges from time to time on my behalf.
- 22) **THAT**, file Civil or Criminal proceedings/report/application/complaints etc. before conceded authority, court for protecting or safe-guarding the above property/ apartments

fill those are sold or the scheme that may be executed on the above said property. To defend such legal proceedings filed against us in the court of Law or in any other office. To defend the case and if necessary to engage Advocate, Pleader, for conducting such cases on our behalf. To do all things required to be done for conducting all these cases including adducing evidence etc in respect of the said property.

23) **THAT**, sign, verify the plaint, written statement, execution, petition of claim and objections, memorandum of appeal, revision & all kinds of pleadings, applications, forms affidavits etc. To appoint counsel for conducting the court cases and other cases before various authority in respect of the above property in various offices, Tribunal etc. To settle, compromise in any of such proceedings in any court, office etc. with the opposite party in our interest and in the interest of the proposed scheme so that nobody will be put to inconvenience, hardship and any loss.

GENERALLY, to do and perform all acts, deeds, matters and things. necessary and convenient for giving full effect to the powers herein contained as fully and effectually as both the parties would do in person.

We hereby declare that we read and clearly understood the contents of this Irrevocable General Power of Attorney and we are fully aware of the Power conferred upon us and it shall not be treated as withdrawn. cancelled or revoke unless the matters aforesaid are fully completed and duly complied with in all respect and till such time this Power of Attorney shall remain.

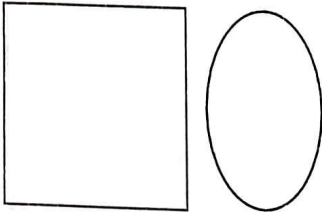
We hereby agree that all such acts and deeds lawfully done by the said Attorney jointly shall be constructed as acts, deeds and things done by us and we undertake to ratify and confirm all and whatsoever the said Attorney shall lawfully do or cause to be done for us by virtue of the power hereby given.

SCHEDULE OF PROPERTY

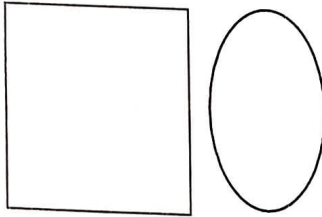
ALL THAT piece and parcel of land bearing Amalgamated PLOT NO. 4-5, total admeasuring 360.00 Sq. Mtrs. (3875.04 Sq. Fts.), in the layout of Kh. No. 165 of Mouza- jaitala, on pattern of Talegaon - Dabhade Scheme Under Section -20 (1)a of ULC & R Act 76, being a portion of the entire land bearing Kh. No. 165. P.S.K. 44 of MOUZA- Jaitala, situated at Jaitala, Nagpur, bearing CORPORATION HOUSE NO. 1046/A/A/4 & 1046/A/A/5, CITY SURVEY NO. 653, SHEET NO. 37(571), within the limits of Nagpur Municipal Corporation and Nagpur Improvement Trust, Nagpur, in Tahsil and District Nagpur and bounded as under-

ON THE EAST	-	KH NO 166.
ON THE WEST	-	9 MTRS. ROAD.
ON THE NORTH	-	PLOT NO. 3
ON THE SOUTH	-	GOVERNMENT AREA.

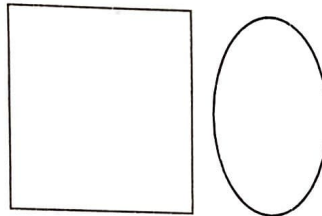
HENCE IN WITNESSES WHEREOF WE HERETO SET OUR HANDS AND SIGNED THIS IRREVOCABLE GENERAL POWER OF ATTORNEY AT NAGPUR ON THIS 14 DAY OF DECEMBER, 2022 IN PRESENCE OF WITNESSES SIGNING AS SUCH.



SHRI LAXMAN DEVIDAS PADOLE
OWNER NO. 1



SHRI DIGAMBAR DEVIDAS PADOLE
OWNER NO. 2



M/S. AGASTYA BUILDERS & DEVELOPER
through it's Authorized Partner

SHRI BADAL S/O MAHENDRAKUMAR MATEY
DEVELOPER

WITNESSES: -

